

25STCV00311 25STCV00311

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Coalition for Responsible Equitable Economic Development Los Angeles v. Chinatown
Station Owner LLC.

Thursday, September
10, 2026

TENTATIVE ORDER GRANTING IN

PART, DENYING IN PART, PLAINTIFF'S MOTION TO SEAL [Res. No. -9395]

I.

BACKGROUND

The

first amended complaint alleges Defendant applied for permits for the College Station Project ("Project") to develop 725 residential units and ground floor commercial uses. (FAC ¶ 10.) Plaintiff submitted comments on the Environmental Impact Report for the Project and filed appeals challenging the City's determinations and recommendations. (FAC ¶ 11.)

Defendant

then entered into a Confidential Environmental Settlement Agreement and Mutual Special Release for the College Station Project ("Agreement") with Plaintiff on March 21, 2019, whereby Defendant agreed to fund the work of a non-profit corporation ("Corporation") to be formed by Plaintiff with permanent staff who would work with disadvantaged and underserved communities in Los Angeles to address the impacts of ongoing development. (FAC ¶ 12.) As part of the consideration given to Defendant under the Agreement, Plaintiff agreed to withdraw its

appeals of the Project approvals. The Agreement settled claims related to the development of the Project. (FAC ¶ 2.)

Defendant

allegedly breached the Agreement by failing to pay \$830,800 to the Corporation after the Project received final approval pursuant to the terms of the Agreement. (FAC ¶ 15.) Plaintiff alleges a claim for breach of contract and specific performance pursuant to Civil Code sections 3300 and 3384 requiring Defendant's payment to the Corporation of \$830,800.

Plaintiff

moves to seal Exhibits 30 through 48 and Exhibits 55 through 57 (collectively, "Exhibits") of Defendant's Exhibits in Support of Defendant's Opposition to Plaintiff's Motion for Summary Judgment.[1]

The

Court entered judgment for Plaintiff in this case on July 14, 2026.

On

August 5, 2026, Defendant filed a Notice of Appeal, which was placed in default on August 21, 2026, pursuant to California Rules of Court, rule 8.140(a), for failing to designate what documents and oral proceedings, if any, are to be included in the record that will be sent to the Court of Appeal, pursuant to rule 8.121.

II.

LEGAL STANDARD

Unless

confidentiality is required by law, court records are presumed to be open to the public, pursuant to a potent "open court" policy bolstered by the First Amendment of the U.S. Constitution and favoring the public nature of court proceedings. (Cal. Rules of Court, Rule 2.550, subd. (c); see NBC Subsidiary (KNBC-TV), Inc. v. Superior Court (1999) 20 Cal.4th 1178, 1199-1200.) Consequently, pleadings, motions, discovery documents, and other papers may not be filed under seal merely by stipulation of the parties; filing under seal requires a court order. (Cal. Rules of Court, rule 2.551, subd. (a); see H.B. Fuller Co. v. Doe (2007) 151 Cal.App.4th 879, 888.)

In

order to issue a sealing order, the Court must expressly find that: (1) there exists an overriding interest that overcomes the right of public access to the record; (2) the overriding interest supports sealing the record; (3) a substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) the proposed sealing is narrowly tailored; and (5) no less restrictive means exist to achieve protection of the overriding interest. (Cal. Rules of Court, rule 2.550, subd. (d)(1)-(5); see *McGuan v. Endovascular Techs., Inc.* (2010) 182 Cal.App.4th 974, 988.) The constitutional policy favoring disclosure must be balanced against other factors, e.g., privacy rights. (See *People v. Jackson* (2005) 128 Cal.App.4th 1009, 1026-27.) The Court acts within its discretion in making factual determinations on a motion to seal. (*Universal City Studios, Inc. v. Superior Court* (2003) 110 Cal.App.4th 1273, 1285.)

A

sealing order must be sought by means of a motion (or application) and accompanied by a memorandum of points and authorities, as well as evidence and testimony containing facts sufficient to justify the mandatory findings required to support a sealing order. (Cal. Rules of Court, rule 2.550, subd. (d) and 2.551, subd. (b).) The proponent of the sealing order must also conditionally lodge the unredacted matter to be sealed with the court. (Cal. Rules of Court, rule 2.551, subd. (b)(4).)

III.

DISCUSSION

Plaintiff moves to permanently seal the Exhibits, which were previously lodged under seal, because: (1) Exhibits 30, 37, 38, 43, 45, and 48 (hereinafter, "Settlement Agreements") "each consist of the complete text of settlement agreements between CREED LA and developers resolving concerns regarding the environmental impacts of various proposed development projects;" (2) Exhibits 31-36, 39-42, and 46-47 "each consist of notices of settlement sent to city or county agencies (hereinafter, 'Notices of Settlement') informing them that CREED LA has entered into environmental settlement agreements with a developer addressing environmental concerns that CREED LA raised in its administrative appeals of CEQA approvals;" and (3) Exhibits 55-57 (hereinafter, "Modrzejewski Deposition and Exhibits") contain Modrzejewski's—the executive director of CREED LA— explanation of "CREED LA's strategies in

opposing development projects and how CREED LA achieved particular settlements.” (Mot., at pp. 3-4.)

First, Plaintiff argues that it has an overriding interest in maintaining the confidentiality of the Exhibits because these “documents reveal CREED LA’s internal strategies and the terms and conditions that developers have been willing to agree to in previous negotiations.” (Mot., at p. 5.) The Settlement Agreements are allegedly “not public record,” and Plaintiff and its counsel maintain that they are “proprietary in nature.” (Carmichael Decl., ¶¶ 5-7 [“These agreements are not individually readily accessible to the public nor are they available to the public in an aggregate grouping. These settlement agreements are between private parties and are not public records; only partial summaries of these agreements are provided to cities or the County of Los Angeles when withdrawing appeals pursuant to these agreements.”].) As to the Notices of Settlement, counsel states that they are considered “proprietary trade secret for the same reasons” as the Settlement Agreements, and if made public, Plaintiff “would be severely prejudiced because it would put CREED LA at a disadvantage in future settlement agreement negotiations. Developers would use information about CREED LA’s past settlements to establish the starting position of settlement negotiations, giving them an unfair advantage in the negotiation process.” (Id., ¶¶ 9-11.) Lastly, as to the Modrzejewski Deposition and Exhibits, counsel argues that “Mr. Modrzejewski testified regarding several sensitive and confidential topics, including the methods that CREED LA uses when opposing development projects; and Mr. Modrzejewski was shown copies of the prior CREED LA settlements provided to Defendants in discovery and was asked questions about their content...[which] could allow developers to attempt to aggregate these settlements in a manner that would provide an advantage in future negotiations of environmental settlements.” (Id., ¶¶ 15-16.)

Second, Plaintiff argues that it will be prejudiced if the Exhibits are made public because the documents shed light on their internal strategies that can be leveraged in subsequent settlement negotiations by developers to gain an unfair advantage. (Mot., at p. 5; Carmichael Decl., ¶¶ 7, 11, 16 [“CREED LA would be severely prejudiced because CREED LA would be at a disadvantage when entering into settlement negotiations to resolve claims over future projects. Developers would use information about CREED LA’s other settlements to set the starting point for negotiations, giving them an advantage over CREED LA in the

settlement negotiation process.”.)

Third, Plaintiff argues that the proposed sealing is narrowly tailored because Plaintiff has only selected “a small subset of [Defendant’s exhibits] as sufficiently sensitive to meet the sealing requirements...[and] include[s] only those materials that must be kept confidential to avoid a substantial probability of prejudice to CREED LA.” (Mot., at p. 6.) Due to the confidential and sensitive information in the Exhibits, Plaintiff argues that “there is no less restrictive means of maintain[ing] their confidentiality than by sealing in full.” (Id.)

In opposition, Defendant argues that Plaintiff’s request is not narrowly tailored and Plaintiff has not adequately established that sealing all of the lodged Exhibits is the least restrictive means possible. (Opp., at p. 2.)

The Court finds that Plaintiff sufficiently established that the Settlement Agreements and the Modrzejewski Deposition and Exhibits are allegedly “not public record,” that they are “proprietary in nature,” that Plaintiff would be severely prejudiced if the documents are not sealed because the documents contain internal strategies that can be leveraged in subsequent settlement negotiations by developers to gain an unfair advantage, and that the request is narrowly tailored. (Carmichael Decl., ¶¶ 5-7, 15-16.) Defendant, also, does not oppose the motion to seal specifically as to the Settlement Agreements. As to the Modrzejewski Deposition and Exhibits, specifically, while Counsel acknowledges that the testimony includes both confidential and non-confidential information, he states that the two “are inextricable intertwined” and thus “selective redaction [is] burdensome and/or impractical.” (Id., ¶ 16.) In addition, counsel states that both parties, due to the intertwined nature, “agreed to designate the entire deposition” as confidential; Defendant does not dispute this assertion in its opposition. (Id.)

The Court, however, finds that Plaintiff has failed to sufficiently plead it had an overriding interest in sealing the Settlement Notices. Plaintiff’s counsel states that the Settlement Notices are “a matter of public record and do not contain the full settlement agreements.” (Id., ¶ 10.) The issue turns on the compilation of said Notices. The Court finds Plaintiff’s argument that a compilation of said Notices would be prejudicial to be unpersuasive. Accordingly, the motion is granted in part as to the Settlement Agreements and Modrzejewski

Deposition and Exhibits and denied in part as to the Settlement Notices.

IV.

CONCLUSION

Based on the foregoing, Plaintiff's motion to seal is granted in part as to the Settlement Agreements and Modrzejewski Deposition and Exhibits and denied in part as to the Settlement Notices.

[1] The

Court notes that Defendant filed an untimely opposition on September 3, 2026. The hearing for this motion is set for September 10, 2026; thus, Defendant's opposition was due by August 27, 2026.